

(2) The power of the Secretary of State under the said Act shall include power by order to prescribe the areas within which aircraft coming from any place outside the United Kingdom are to land and the other conditions to be complied with by such aircraft, and, if any person contravenes any of the provisions of any such order, he shall be guilty of an offence under the said Act, unless he proves that he was compelled to do so by reason of stress of weather or other circumstances over which he had no control.

Power to  
compel com-  
pliance when  
aircraft dis-  
obeys signals.

2. If an aircraft flies or attempts to fly over any area prescribed under this Act for the purposes of the defence or safety of the realm, or, in the case of an aircraft coming from any place outside the United Kingdom, fails to comply with any of the conditions as to landing prescribed by an order under the last foregoing section, it shall be lawful for any officer designated for the purpose by regulations made by the Secretary of State, to cause such signal as may be prescribed by those regulations to be given, and, if after such signal has been given the aircraft fails to respond to the signal by complying with such regulations as may be made by the Secretary of State prescribing the action to be taken on such a signal being given, it shall be lawful for the officer to fire at or into such aircraft and to use any and every other means necessary to compel compliance, and every and any such officer and every other person acting in his aid and by his direction shall be and is hereby indemnified and discharged from any indictment, penalty, action, or other proceeding for so doing.

Short title.

3. This Act may be cited as the Aerial Navigation Act, 1913; and the Aerial Navigation Act, 1911, and this Act may be cited together as the Aerial Navigation Acts, 1911 and 1913.

## CHAPTER 23.

An Act to reduce the number of Principal Clerks of the Court of Session in Scotland. [7th March 1913.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Reduction in  
number of  
principal  
clerks of  
Session.  
52 & 53 Vict.  
c. 54.

1. From and after the occurrence of a vacancy in the office of principal clerk of Session and notwithstanding anything contained in the Clerks of Session (Scotland) Regulation Act, 1889, or in any other Act, there shall be only one principal clerk of Session, who shall be vested with the powers conferred by or in pursuance of the said Act or any other Act on the two principal clerks of Session, and any references in the said Act or in any other Act to the principal clerks of Session or either of them

shall be construed as references to the principal clerk for the time being.

2. This Act may be cited as the Clerks of Session (Scotland) Regulation Act, 1913; and the Clerks of Session (Scotland) Regulation Act, 1889, and this Act shall be construed as one Act, and may be cited together as the Clerks of Session (Scotland) Regulation Acts, 1889 and 1913.

Short title and citation.

## CHAPTER 24.

An Act to amend the Shops Act, 1912, in its application to premises for the sale of refreshments. [7th March 1913.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The provisions of section one of the Shops Act, 1912, shall not apply to shop assistants employed in any premises for the sale of refreshments, whether licensed for the sale of intoxicating liquor or not, if their employment is wholly or mainly in connexion with the sale of intoxicating liquors or refreshments for consumption on the premises, and if the occupier of the premises, by such a notice as is hereinafter mentioned, signifies that he elects that instead of those provisions the following provisions shall apply :—

Amendment of 2 Geo. 5. c. 3 in its application to premises for the sale of refreshments.

- (a) No such assistant shall be employed for more than sixty-five hours in any week exclusive of meal times.
- (b) Provision shall be made for securing to every such assistant—

- (i) thirty-two whole holidays on a week day in every year, of which at least two shall be given within the currency of each month and which shall comprise a holiday on full pay of not less than six consecutive days ;

- (ii) twenty-six whole holidays on Sunday in every year, so distributed that at least one out of every three consecutive Sundays shall be a whole holiday :

Provided that two half holidays on a week day shall be deemed equivalent to one whole holiday on a week day.

- (c) Intervals for meals shall be allowed to every such assistant amounting on a half holiday to not less than three-quarters of an hour, and on every other day to not less than two hours, and no assistant shall be employed for more than six hours without being allowed an interval of at least half an hour :